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No. 95-83

Supreme Court, U.S.
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In the Supreme Court of the United States

OCTOBER TERM, 1995

Alan Meghrig and Margaret Meghrig,
Petitioners

vs.

KFC Western, Inc.,
Respondent

**On Writ of Certiorari to the
United States Court of Appeals
for the Ninth Circuit**

BRIEF FOR THE RESPONDENT

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QUESTIONS PRESENTED

(1) Whether Section 7002(a)(1)(B) of the Resource Conservation and Recovery Act (RCRA), 42 U.S.C. 6972(a)(1)(B), provides federal courts with the authority to award restitutionary relief in the exercise of their equitable jurisdiction to private parties who removed environmental contamination.

(2) Whether RCRA Section 7002(a)(1)(B) conditions the availability of a citizen suit on the existence of an imminent and substantial endangerment at the time that the lawsuit is filed.

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OPINIONS BELOW

The opinion of the court of appeals (Pet. App. A1-A20) is reported at 49 F.3d 518. The order of the court of appeals (Pet. App. A26) denying petitioners' petition for rehearing is not reported. The order and opinion of the district court dismissing the action (Pet. App. A21-A23) is not reported.

JURISDICTION

The judgment of the court of appeals was entered on March 1, 1995. A timely petition for rehearing was denied on April 14, 1995. The petition for a writ of certiorari was filed on July 13, 1995, and was granted on September 27, 1995. The jurisdiction of this Court is based on 28 U.S.C. 1254(1).

STATUTORY PROVISION INVOLVED

Section 7002 of the Resource Conservation and Recovery Act, 42 U.S.C. § 6972, is reprinted in full in an appendix to this brief.

STATEMENT

This case concerns a current land owner's effort to obtain equitable restitution from the property's prior owners for the costs of cleaning up petroleum wastes that may have presented an imminent and substantial endangerment to human health and the environment and that were disposed of on the property prior to the current owner's purchase. The Ninth Circuit agreed that Section 7002(a)(1)(B) of the Resource Conservation and Recovery Act, 42 U.S.C. § 6972(a)(1)(B), authorized such a suit for restitutionary relief.

A. History of the Contaminated Property

Respondent KFC Western, Inc. ("KFC") is the current owner of a parcel of property located in Los Angeles, California, which is zoned for commercial use. KFC acquired the property in 1975 from petitioners Alan and Margaret Meghrig ("the Meghrigs"), and KFC has owned and operated a restaurant at the site for the past twenty years. Joint Appendix ("JA") 12-13.

In 1988, KFC began to construct certain improvements upon the property. During the course of construction, KFC learned that its restaurant was built upon and surrounded by soil that had been contaminated by the release of refined petroleum products. The petroleum products appeared to have penetrated the soil as a result of leakage from underground storage tanks present on the property before KFC acquired it and from spills of petroleum not related to underground tanks. The presence of petroleum products had caused elevated levels of lead and benzene to accumulate in the soil. Upon discovery of the contaminated soil, the City of Los Angeles's Department of Building and Safety issued a stop order forbidding further construction until such time as a clearance was issued by the Los Angeles County Department of Health Services. JA 13. In an effort to obtain the clearance, which ultimately was issued, KFC undertook extensive soil remediation work, which cost more than \$211,000. KFC completed cleanup in March 1989 and the Department of Health Services issued its formal clearance in May 1989. *Id.* at 14.

B. Proceedings in the District Court

KFC commenced the instant action in the United States District Court for the Central District of California in May

1992.¹ KFC's original complaint pled a single cause of action seeking monetary relief for expenses incurred in remediating the subject property. JA 5-11. The complaint alleged that the Meghrigs had caused the contamination that necessitated the clean-up, by negligently operating a service station on the property and by negligently maintaining the station's underground storage tanks. JA 9, ¶ 14.

The Meghrigs moved to dismiss the complaint for failure to state a claim on two grounds: a) the complaint failed to allege that "imminent and substantial endangerment" existed at the time that the action was commenced; and b) the prayer for monetary relief was the equivalent of a prayer for damages and therefore was beyond the scope of the district court's jurisdiction which, in the Meghrigs' reading of the statute, permits only injunctive relief. The district court granted the motion to dismiss, with leave to amend.

KFC filed an amended complaint, which alleged that the conditions remediated "may have presented an imminent and

¹ Respondent KFC has also pursued state law remedies in state court by, in the first instance, filing an action seeking reimbursement of clean-up costs. KFC has not obtained any relief based on these state law causes of action. In *KFC Western, Inc. v. Meghrig*, 23 Cal. App. 4th 1167 (1994) the California Court of Appeal ruled that respondent could not state a cause of action under the state statute which created a fund designed to compensate property owners for the cost of remediating environmental damage caused by leaking underground storage tanks. The Court of Appeal's decision did permit respondent to amend its complaint to allege causes of action for continuing nuisance and trespass. respondent did so, but the trial court in that case recently granted petitioners' motion for summary judgment, based, in part, on its conclusion that respondent did not suffer "any actual damage" even though it also found that respondent discovered contamination at the property and cleaned it up. JA 25-26, ¶¶ 12-13, 15-16.

substantial endangerment" and which also clarified the nature of the relief requested. JA at 12-19. The amended complaint stated that it sought an award of "*equitable restitution*" rather than money damages. JA 17-19 (emphasis added).

Petitioners again moved to dismiss for failure to state a claim on the same grounds advanced in their earlier motion: failure to allege that an "imminent and substantial endangerment" existed at the time that the initial complaint was filed; and a request for monetary relief beyond the district court's jurisdiction, which purportedly is limited to injunctive relief. The district court granted this motion without leave to amend and, accordingly, dismissed KFC's complaint. The court held that both of petitioners' asserted grounds for dismissal were meritorious. Pet.App. A21-A23.

C. Proceedings in the Court of Appeals

KFC appealed the district court's judgment and order of dismissal to the Ninth Circuit. On March 1, 1995 the court of appeals reversed the district court's decision, with one member of the panel dissenting. Pet.App. A1-A20.

The majority held that Section 7002(a)(1)(B) of RCRA does not require that the "imminent and substantial endangerment" be in existence at the time that an action is filed in court. And, the court further held that Section 7002(a)(1)(B) -- particularly when compared to the almost identical language of RCRA Section 7003, a section that empowers the Environmental Protection Agency Administrator to bring suits to remedy imminent and substantial endangerments -- was drafted broadly enough to include within the district court's jurisdiction the authority to award restitutionary relief. Pet.App. A5-A12.

The court of appeals' opinion emphasized that several reported decisions of the Eighth and Third Circuits had concluded that the EPA Administrator had a right to restitutionary relief under the virtually identically-worded RCRA Section 7003 even when the Administrator's action was filed after the conditions creating the imminent and substantial endangerment had ceased to exist.²

The court of appeals further found that the equitable considerations in favor of awarding an injured citizen restitutionary relief pursuant to Section 7002(a)(1)(B) -- regardless of whether the endangerment still exists at the time that the suit is commenced -- are even more compelling than those that favor such an award to the EPA Administrator since, in the words of the majority opinion:

"[I]n practice, an interpretation of section [7002](a)(1)(B) that afforded only injunctive relief, not compensation, would make the remedy available only to concerned outsiders, who can never be held responsible for environmental clean-up. We would foreclose a RCRA remedy for the innocent buyers

² The Ninth Circuit's opinion followed two decisions of the Eighth Circuit, *United States v. Aceto Agrico Chems. Corp.*, 872 F.2d 1373 (8th Cir. 1989) and *United States v. Northeastern Pharmaceutical & Chem. Co.*, 810 F.2d 726, cert. denied, 484 U.S. 848 (8th Cir. 1987) and an earlier decision of the Third Circuit in *United States v. Price*, 688 F.2d 204 (3d Cir. 1982). Pet.App. A5-A7. All three of these decisions permitted the United States to recover post-clean-up restitutionary relief pursuant to Section 7003. However, in its recent decision in *Furrer v. Brown*, 62 F.3d 1092 (8th Cir. 1995) the Eighth Circuit found that *Aceto* and *NEPACCO* "simply assume subject matter jurisdiction *sub silentio*" on the issue of the government's entitlement to response costs.

who clean up contaminated property. In fact, it is even more important for private citizens, as compared to the EPA Administrator, to have a restitutionary remedy under RCRA. A private citizen often cannot control the timing of clean-up actions but, rather, must clean the contaminated property whenever the government obtains an appropriate order. Even the innocent private party, like KFC, who purchases already-contaminated property, often must clean the property immediately and recover secondarily from the actual polluter."

Pet.App. A11.

SUMMARY OF ARGUMENT

1. Section 7002(a)(1)(B) of the Resource Conservation and Recovery Act (RCRA), 42 U.S.C. § 6972(a)(1)(B), provides federal courts with jurisdiction to hear suits brought by private parties to "restrain" a person who is contributing to the handling or disposal of a solid or hazardous waste which creates an "imminent and substantial endangerment" to health or the environment. The statute also expressly grants the federal courts jurisdiction to order such person to "take such other actions as may be necessary."

There is no merit in petitioners' contention that Congress did not confer upon federal courts hearing these citizen suits brought under Section 7002(a)(1)(B) the authority to award restitutionary relief whenever necessary and appropriate. When, as in Section 7002(a)(1)(B), Congress expressly creates a private right of action, the "traditional presumption" is that Congress intends for courts to be able to award "all appropriate relief" (*Franklin v. Gwinnett County Public Schools*, 503 U.S. 60, 71 (1992)) and that such relief presumptively extends, at a minimum, to the

district court's complete equitable jurisdiction. *Hecht v. Bowles*, 321 U. S. 321, 329 (1944); *Porter v. Warner Holding Co.*, 328 U.S. 395, 398 (1946); *Weinberger v. Romero-Barcelo*, 456 U.S. 305, 311-314 (1982). "[C]omprehensiveness of equitable jurisdiction is not to be denied or limited in the absence of a clear and valid legislative command. Unless a statute in so many words, or by a necessary and inescapable inference, restricts the court's jurisdiction in equity, the full scope of that jurisdiction is to be recognized and applied." *Weinberger v. Romero-Barcelo*, 456 U.S. 305, 313 (1982), quoting *Porter v. Warner Holding Co.*, 328 U.S. 395, 398 (1946).

In this case, there is no clear and valid legislative command that the full scope of equitable relief, including restitutionary relief, is not available. Indeed, the statutory language itself confirms its availability by expressly authorizing the federal courts to "take such other action as may be necessary" to afford complete relief. Petitioners have not made the slightest effort to overcome the presumption in favor of full equitable relief. Instead, their arguments simply ignore its existence.

Petitioners are equally misguided in contending that an award of restitution pursuant to the citizen suit provision is tantamount to the implication of a private right of action for damages under the statute. Respondent is not suggesting that Section 7002(a)(1)(B) authorizes an action for money damages at law. Notwithstanding petitioners' argument to the contrary, this Court has long drawn a sharp distinction between the restitutionary relief, sought by respondent in this case, which is considered equitable in nature, and awards of compensatory damages and statutory penalties, which are characterized as legal. *Porter v. Warner Holding Co.*, *supra*; *Bowen v. Massachusetts*, 487 U.S. 879, 893 (1988); *Tull v. United States*, 481 U.S. 412, 423 (1987). The two

remedies are not at all equivalent.

Likewise unavailing are the excerpts from the legislative history of RCRA's citizen suit provision upon which petitioners rely in support of their claim that the federal courts' jurisdiction to award relief extends only to the issuance of injunctive relief. That legislative history cannot overcome the plain statutory language and is, in any event, subject to multiple layers of ambiguity. The statute, instead of limiting the relief available to injunctive relief, specifically empowers the court to award injunctive relief, *or* "take such other action as may be necessary, *or both*." In addition, the legislative history excerpts speak only of Congress's intent to provide for prompt abatement of imminent and substantial endangerments. It nowhere indicates any intent on the part of Congress to circumscribe traditional equitable remedies.

2. Section 7002(a)(1)(B) does not restrict the availability of a citizen suit to circumstances in which an "imminent and substantial endangerment" exists at the time that the lawsuit is instituted. The literal language of RCRA section 7002(a)(1)(B) reflects clear congressional intent to extend the citizen suit provision to past conduct rather than to limit the scope of the provision to imminent and substantial endangerments existing at the time that a lawsuit is filed. The repeated references to "past or present" make plain that Congress did not intend to confine this section's reach to the present or future.

In construing the "imminent and substantial endangerment" language, this Court must look to "the provisions of the whole law, and to its object and policy." *John Hancock Mutual v. Harris Trust & Savings Bank*, 114 S. Ct. 517, 523 (1993). The United States claims that the statutory language "unambiguously indicate[s]" that a citizen suit must be filed in response to *specified activities* that "may

present an imminent and substantial endangerment to health or the environment." Petitioners' interpretation is that suits may be filed only for *conditions* "which may present an imminent and substantial endangerment."

Neither the United States nor petitioners are correct. The most natural reading of "which may present an imminent and substantial endangerment" is that it denotes only the kind of "solid or hazardous waste" that can invoke Section 7002(a)(1)(B)'s jurisdiction. The correctness of this reading is reinforced by further language within Section 7002(a). Section 7002(a), in describing the scope of judicial relief available under subsection (a)(1)(B), provides that the district court shall have jurisdiction "to restrain any person who has contributed or is contributing to the past or present handling . . . of any solid or hazardous waste referred to in paragraph (1)(B)." Here the statute plainly links the meaning of "solid or hazardous waste" for the purposes of Section 7002(a)(1)(B) to the earlier reference to those types of wastes that "may present an imminent and substantial endangerment." Thus, it is not *activities* that must present the endangerment at some particular time. The activities may, as in the prior portion of the law, occur in the "past or present."

The structure of RCRA as a whole is consistent with respondent's reading of the "imminent and substantial endangerment" language. Although the statute provides for a 90-day notice to the Environmental Protection Agency Administrator, the appropriate state agencies, and potential defendants prior to the commencement of suit, commencement of suit after clean-up has been concluded does not render the notice provision "gratuitous," as petitioners contend. The required notice still serves valuable functions even where, as here, plaintiff has eliminated the hazard. First, it serves the purpose of assisting EPA to

fulfill its statutory obligations to inventory and monitor hazardous waste sites and to collect and disseminate information about the location of those sites. Second, the notice promotes settlement prior to a resort to the courts.

In addition, RCRA's object and purposes are best served by respondent's construction of the statute. RCRA's dual purposes are encouraging resource recovery and protecting against contamination. Certainly, these purposes are far better served by a reading of the statute that facilitates immediate clean-up by providing a financial incentive for it. In contrast, the reading urged by petitioners and the government is perverse because it encourages potential plaintiffs to postpone clean-up for the purpose of preserving their cause of action under RCRA thereby heightening the risk of irreparable injury to the public health and the environment.

The construction of the statute urged by respondent and adopted by the Ninth Circuit does not interfere with the cost recovery scheme set forth in CERCLA, 42 U.S.C. §§ 9601 *et seq.* CERCLA was enacted in 1980. Congress could easily have eliminated the government's enforcement authority under RCRA's Section 7003 at that time. And, by the same token, Congress could easily have chosen not to enact Section 7002(a)(1)(B), providing the authority for citizen enforcement in 1984. Congress instead decided that the remedial purposes of the two statutes would best be served by allowing the CERCLA and RCRA enforcement provisions to co-exist. And this legislative judgment is embodied in CERCLA's "savings provision," which explicitly and explicitly refutes petitioners' contention that CERCLA provides a basis for narrowly reading petitioners' obligations or liabilities under RCRA.

ARGUMENT

I. SECTION 7002(A) OF THE RESOURCE CONSERVATION AND RECOVERY ACT AUTHORIZES FEDERAL DISTRICT COURTS TO EXERCISE THEIR FULL INHERENT EQUITABLE JURISDICTION, INCLUDING THE AWARDING OF RESTITUTIONARY RELIEF, AND DOES NOT EVINCE A CLEAR CONGRESSIONAL INTENT TO LIMIT THE COURTS TO INJUNCTIVE REMEDIES

A. Federal Courts, When Interpreting Statutes That Provide For Equitable Relief, Are Presumed To Have Jurisdiction To Grant The Full Range of Equitable Relief-- Absent Some Clear Congressional Directive Or Inescapable Statutory Inference To The Contrary. This Presumption Applies Here And Its Application Is Buttressed By The Statutory Language.

Petitioners advance a remarkable claim. They contend that in enacting Section 7002(a) of the Resource Conservation and Recovery Act, 42 U.S.C. § 6972(a), Congress intended to preclude federal district courts from exercising their full equitable discretion, which this Court has long held includes the awarding of restitutionary relief in necessary and appropriate circumstances. In direct opposition to petitioners' claim is this Court's settled precedent that Congress should be presumed not to have so limited the federal court's authority unless there exists clear congressional intent to the contrary. *Franklin v. Gwinnett County Public Schools*, 503 U.S. 60, 71 (1992). Because petitioners offer no evidence of such contrary congressional intent, and there is none, the judgment of the Ninth Circuit should be affirmed and the case remanded to the lower courts for consideration of whether restitutionary relief is warranted in the circumstances

of this case.

When Congress creates a private right of action, the "traditional presumption" is that Congress intends for courts to be able to award "all appropriate relief" in any lawsuit brought pursuant to that cause of action. *Franklin v. Gwinnett County Public Schools*, 503 U.S. 60, 71 (1992). The *Franklin* opinion makes clear that the scope of relief appropriate in any particular case turns on the nature and degree of both the plaintiff's injury and the statutory interests being vindicated by the lawsuit. The presumption is that Congress intended for courts to be capable of fully redressing both that injury and those statutory interests. Because, moreover, of the anomalies that would otherwise be created, the Court finds that presumption rebutted only in the face of a "clear directive to the contrary by Congress." *Id.* at 70-71.

The rationale for that presumption is two-fold. First, it is fair to assume that when Congress invokes the jurisdiction of the federal courts, Congress does not intend to disturb the inherent authority and expertise of those courts in fashioning and awarding judicial remedies. Second, it is likewise fair to assume that Congress intended to provide successful plaintiffs with complete relief.

The impact of the presumption is considerable. Congressional intent remains, as always, the ultimate touchstone for determining the remedies available to a plaintiff maintaining a statutory cause of action. Yet, congressional silence regarding the appropriate remedial scope of the federal district courts is tantamount to congressional intent to invoke the courts' full inherent remedial authority. Because, moreover, only the most "clear directive to the contrary by Congress" is capable of overcoming that presumption, rarely should any indicia of congressional intent less weighty than the plain meaning of

the statutory language be capable of defeating the presumption.

This Court has made especially clear its commitment to that presumption in considering the scope of the federal judiciary's equitable jurisdiction. The Court has repeatedly admonished the lower courts that they should presume that they retain their full equitable jurisdiction. That jurisdiction extends in a particular case both to the scope of equitable relief available and to the factors that must be considered in determining whether to award equitable relief at all. *Amoco Production Co. v. Village of Gambell*, 480 U.S. 531, 542 (1987); *Weinberger v. Romero-Barcelo*, 456 U.S. 305, 311-314 (1982); *Porter v. Warner Holding Co.*, 328 U.S. 395, 398 (1946); *Hecht v. Bowles*, 321 U.S. 321, 329 (1944).

To be sure, "Congress may intervene and guide or control the exercise of the courts' [equitable] discretion," but this Court had made clear that it will "not lightly assume that Congress has intended to depart from established principles." *Romero-Barcelo*, 456 U.S. at 313 (citations omitted). "[C]omprehensiveness of * * * equitable jurisdiction is not to be denied or limited in the absence of a clear and valid legislative command. Unless a statute in so many words, or by a necessary and inescapable inference, restricts the court's jurisdiction in equity, the full scope of that jurisdiction is to be recognized and applied." *Id.* (quoting *Porter v. Warner Holding Co.*, 328 U.S. 395, 398 (1946); see also 456 U.S. at 322 (Stevens, J., dissenting) ("Unless Congress specifically commands a particular form of relief, the question of remedy remains subject to a court's equitable discretion.")).

Of particular significance to the instant case, the "full scope of that jurisdiction" plainly extends to the awarding of restitutionary relief. Restitutionary relief is, of course, a

remedy "traditionally viewed as 'equitable.'" *Mertens v. Hewitt Assoc.*, __ U.S. __, 113 S.Ct. 2063, 2068 (1993). And, it is far too late for petitioners to claim that the presumption favoring the federal judiciary's retention of its full equitable jurisdiction does not somehow extend to restitutionary remedies. For, in fact, the leading case applying that presumption, *Porter v. Warner Holding Co.*, 328 U.S. 395 (1946), did so a half century ago in recognizing the availability of the very kind of restitutionary remedy petitioners purport to deny the courts authority to award in the case now before the Court.

In *Porter*, this court construed the Emergency Price Control Act of 1942, a statute that provided, in pertinent part, that the Administrator of the Office of Price Administration, when he determined that any person had engaged or was about to engage in practice which would constitute a violation of certain provisions of the act, could "*make application to the appropriate court for an order enjoining such acts or practices*" or "*for an order enforcing compliance with such provision*". The central issue in *Porter* was whether the quoted language authorized the district courts to grant restitutionary relief (in this case, the repayment of excessive rents charged in violation of the act). This Court concluded that the act authorized the district court to award all appropriate equitable remedies, including restitution, writing:

[T]he Administrator invoked the jurisdiction of the District Court to enjoin acts and practices made illegal by the Act and to enforce compliance with the Act. Such a jurisdiction is an equitable one. *Unless otherwise provided by statute, all the inherent equitable powers of the District Court are available for the proper and complete exercise of that jurisdiction.* And since the public interest is involved in a proceeding of this nature,

those equitable powers assume an even broader and more flexible character than when only a private controversy is at stake. [Citation.] Power is thereby resident in the District Court, in exercising this jurisdiction, "to do equity and to mould each decree to the necessities of the particular case." *Hecht v. Bowles*, 321 U.S. 321, 329, 64 S. Ct. 587, 592, 88 L. Ed. 754. . . .

Porter, 328 U.S. at 397-98.

Porter also sets forth the standard by which to consider the merits of any claim that restitutionary relief is not part of the court's traditional equitable jurisdiction in a particular cause of action. "'The great principles of equity, securing complete justice, should not be yielded to light inference or doubtful construction.'" *Porter*, 328 U.S. at 398 (quoting *Brown v. Swann*, 35 U.S. 497, 503 (1836)).

[T]he comprehensiveness of this equitable jurisdiction is not to be denied or limited in the absence of a clear and valid legislative command. *Unless a statute in so many words or by a necessary and inescapable inference, restricts the court's jurisdiction in equity, the full scope of that jurisdiction is to be recognized and applied.* "The great principles of equity, securing complete justice, should not be yielded to light inferences, or doubtful construction."

Porter, 328 U.S. at 398 (citations omitted).

An approach to statutory construction identical to the one taken in *Porter* was taken by this Court in *Mitchell v. Robert De Mario Jewelry, Inc.*, 361 U.S. 288 (1960). In *Mitchell*, the issue was similar to that in *Porter*: did the district courts have jurisdiction, under the Fair Labor Standards Act, to order reimbursement of wages lost as a result of a firing in

violation of the act when the act expressly authorized injunctive relief but made no mention of other equitable remedies? The court of appeals in *Mitchell* had ruled that it had no jurisdiction to issue an order for reimbursement of back pay because such jurisdiction, in its view, "must be expressly conferred by an act of Congress or be necessarily implied from a Congressional enactment." Justice Harlan, writing for the Court, relied upon the above-quoted language from the *Porter* case in finding the court of appeals' construction "mistaken". The *Mitchell* opinion not only adopted the reasoning of *Porter* that the full range of equitable remedies is available to the federal courts absent an expressed congressional intent to the contrary but elaborated upon it:

When Congress entrusts to an equity court the enforcement of prohibitions contained in a regulatory enactment, it must be taken to have acted cognizant of the historic power of equity to provide complete relief in the light of statutory purposes. As this court long ago recognized, "there is inherent in the Courts of Equity a jurisdiction to *** give effect to the policy of the legislature." *Clark v. Smith* 13 Pet. 195, 203, 10 L. Ed. 123.

361 U.S. at 291-92.

Forty-four years after *Porter*, this Court applied *Porter's* approach to statutory construction in *California v. American Stores Co.*, 495 U.S. 271 (1990). In *American Stores*, the question was whether Section 16 of the Clayton Act, which specifically authorizes injunctive relief for violations of the act, authorizes an order for stock divestiture after completion of an anti-competitive merger. The Court held that divestiture was an appropriate remedy, approving the reasoning of the First Circuit in a similar case that divestiture

is available under Section 16 because that Section "states no restrictions or exceptions to the form of injunctive relief a private plaintiff may seek" and because "the statutory language indicates Congress' intention that traditional principles of equity govern the grant of injunctive relief. 495 U.S. at 282-84.

B. Petitioners Have Not Overcome The Presumption In Favor Of Full Equitable Jurisdiction

The *Porter-Franklin* line of cases leads to the inescapable conclusion that over the last fifty years this Court has consistently maintained the position that the federal judiciary's full equitable jurisdiction is presumed to exist in enforcing statutes in the absence of clear congressional directives to the contrary. Petitioners make not even the barest effort to overcome the applicable presumption in favor of restitutionary relief. They instead simply ignore the existence of the presumption altogether. No doubt, however, petitioners do so for good reason. The plain meaning of Section 7002(a) of RCRA comes nowhere close to providing a "clear * * * congressional command" denying the federal courts authority to award restitutionary relief in an appropriate case. Quite the opposite is true. Section 7002(a)'s plain import is that federal courts possess just such authority pursuant to that statutory provision.

Section 7002(a) provides a district court with "jurisdiction * * * to restrain any person who has contributed or who is contributing to the past or present handling, storage, treatment, transportation, or disposal of any solid or hazardous waste referred to in paragraph (1)(B), to order such person to take such other action as may be necessary, or both * * *." 42 U.S.C. § 6972(a).

We do not here dispute petitioners' claim that the relevant

language is sufficient to preclude the district courts from awarding successful plaintiffs money damages at law for any injuries they may suffer as a result of an endangerment. But, unlike petitioners, we do not agree that the language likewise precludes an awarding of restitutionary relief. Petitioners' contrary view suffers from two fatal flaws.

First, and most importantly, petitioners wrongly assume that the possibility of restitutionary relief is not fairly embraced by the language "to order such person to take such other action as may be necessary." Restitutionary relief is a kind of equitable relief that is "order[ed]." And, as in this case, restitutionary relief may be "necessary" in order to disgorge the enrichment unjustly being enjoyed by petitioners who did not have to pay any of the cleanup expenses unfairly absorbed by respondent alone. *Cf.* Restatement of Law, Restitution, § 76 (1937) ("A person who, in whole or in part, has discharged a duty owed by him but which as between himself and another should have been discharged by the other, is entitled to indemnity from the other, unless the payor is barred by the wrongful nature of his conduct."); *see generally* Douglas Laycock, *Modern American Remedies -- Cases and Materials*, 646 (2d ed. 1994); Douglas Laycock, *The Scope and Significance of Restitution*, 67 Tex. L. Rev. 1277 (1989); Saul Levmore, *Explaining Restitution*, 71 Va. L. Rev. 65 (1985).

Section 7002(a)(1)(B) nowhere states, notwithstanding petitioners' contrary claim, that an order is only "necessary" to the extent that it redresses an ongoing environmental hazard. Congress no doubt could have used the "necessary" modifier in such a fashion. But it did not. Congress instead invoked the "necessary" modifier in the most traditional way in the remedial context, thereby allowing the courts to decide for themselves whether restitutionary relief was appropriate and "necessary" in light of the particular facts of a case.

Congress did not erect an insuperable barrier to the court's exercise of its equitable discretion in considering the merits of a claim for restitutionary relief under Section 7002(a).

This Court's decision in *Porter* eliminates any possible doubt regarding the significance of Section 7002(a)'s statutory language. The language at issue in this case is virtually identical to the statutory language at issue in *Porter*, which this Court held authorized the granting of restitutionary relief. Applying the presumption previously discussed, this Court held that the phrase "other order" fairly embraced an order for restitutionary relief. See 328 U.S. at 399 ("The term 'other order' contemplates a remedy other than that of an injunction or restraining order, a remedy entered in the exercise of the District Court's equitable discretion.").

For similar reasons, Section 7002(a)'s command that a district court may "order such person to take such other action as may be necessary" fairly embraces an order for restitutionary relief. Indeed, because this Court's decision in *Porter* was settled law at the time of congressional drafting and enactment of Section 7002(a), this case presents an even more compelling instance than did *Porter* for concluding that Congress intended to preserve the federal district court's full equitable jurisdiction, including the possibility of awarding restitutionary relief when such an order "is appropriate and necessary to enforce compliance with the Act and to give effect to its purposes." 398 U.S. at 400.

The second flaw in petitioners' reasoning is their apparent assumption that restitutionary relief must be precluded because Section 7002(a) does not provide for money damages at law. Petitioners, however, misapprehend the relationship between restitutionary relief sounding in equity and money damages at law.

Although the boundary within restitution between law and equity is imprecise at best because of their parallel and overlapping histories (see Restatement of Law, Restitution, 4-10 (1937); Laycock, *The Scope and Significance of Restitution*, 67 Tex. L. Rev. at 1278-1283), clearly distinct sets of principles govern the availability of restitutionary remedies in equity and money damages at law. Although both may require the payment of money, their respective measures as well as the criteria for their availability are fundamentally different. Damages at law are not analogous to equitable restitutionary relief. See *Tull v. United States*, 481 U.S. 412, 423-24 (1987); see *Chauffeurs, Local No. 391 v. Terry*, 494 U.S. 558, 570 (1990).

Once again, this Court's ruling in *Porter* is revealing. In *Porter*, the Court rejected the argument that "other order" should not be construed to authorize restitutionary relief because Congress had otherwise in the relevant legislative enactment provided an explicit, separate provision for money damages. The Court explained the difference between restitution in equity and damages at law and how, for that reason, a congressional determination with regard to the availability of the latter in one provision did not dictate the result in a distinct provision. See 398 U.S. at 400-402.

The same reasoning applies here. Whether Congress created a private right of action for money damages has no immediate bearing on the distinct question whether Section 7002(a) permits federal district courts in exercising their traditional equitable discretionary jurisdiction to include an award of restitutionary relief.

C. Petitioners Misconstrue Established Precedent That Has Granted Restitutionary Relief In Environmental Cases And Rejected The Claim That Such Relief Is Tantamount To An Award Of Damages

Decisions by this court in *Wyandotte Transp. Co. v. United States*, 389 U.S. 191, 204-205 (1967) and *Tull v. United States*, 481 U.S. 412, 423 (1987) have addressed the restitution-damages distinction in the context of environmental clean-up. In *Wyandotte*, the government sought and received reimbursement from the owners of a barge for the cost of removing barge wreckage which had contaminated a navigable waterway with chlorine in violation of the Rivers and Harbors Appropriation Act. The opinion held that the government, by supplying a service to the defendants necessary to protect the public health, was *entitled to restitution* for the monies it had expended. And in *Tull*, this court recognized that civil penalties assessable under the Clean Water Act, 33 U.S.C. section 1251 *et seq.*, are legal and punitive in nature in contrast to restitutionary remedies which aim at restoring the parties to the status they had prior to defendant's commission of an unlawful act.

In addition to the authorities cited above, much case law has been generated in the last decade on the issue of whether actions to recover environmental response costs under various environmental statutes including RCRA, the Comprehensive Environmental Response, Compensation, and Liability Act, 42 U.S.C. §§ 9601, *et seq.*, ("CERCLA"), and the Federal Water Pollution Control Act ("FWPCA") are legal or equitable in nature. The overwhelming majority of courts to consider the question deemed such actions to be actions for *equitable restitution*. *United States v. P/B STCO 213*, 756 F.2d 364, 366 (5th Cir., 1985) exemplifies the reasoning of these cases: ("The FWPCA imposes a primary

duty on the polluter to clean up. Upon the polluter's non-performance of that duty, the FWPCA authorizes the United States to clean up and thereafter to recover its costs. *Thus, the United States does not assert a right to compensatory damages based on the polluter's breach of duty not to pollute. Rather the United States asserts a right to restitution based on the costs it incurred in performing the polluter's duty to clean up.*") (Emphasis supplied.) *Accord, U.S. v. Mottolo*, 605 F. Supp. 898, 912, 913 (D.N.H. 1985) (citing seven cases that characterize recovery of response costs under CERCLA as equitable relief); *United States v. Price*, *supra* 688 F.2d at 213-214; *United States v. Conservation Chemical Co.*, 619 F. Supp. 162, 201 (W.D.Mo. 1985) and *United States v. Northeastern Pharmaceutical & Chem. Co.*, 810 F.2d 726, 749 (8th Cir. 1986) (all holding reimbursement of abatement costs under RCRA to be equitable relief in the form of restitution). *See also Bayless Inv. & Trading Co. v. Chevron U.S.A. Inc.*, No. CIV 93-0704 PHX PGR, 1994 U.S. Dist. LEXIS 12190 (D.Ariz. 1994) (allowing restitution as a remedy under Section 7002(a)(1)(B) based on its power to award a mandatory injunction requiring the expenditure of money).

In asserting that an award of restitution for environmental response costs under RCRA is, in reality, an award of damages beyond the jurisdiction of the district court, petitioners ignore the substantial body of law characterizing reimbursement of environmental response costs as restitutionary in nature and rely chiefly on this Court's decisions in *Middlesex County Sewerage Auth. v. National Sea Clammers Ass'n.*, 453 U.S. 1 (1981) and *Cort v. Ash*, 422 U.S. 66, (1975). *Sea Clammers* admonishes that "it is an elemental canon of statutory construction that where a statute expressly provides a particular remedy or remedies, a court must be chary of reading others into it." 453 U.S. at 14-15.

In *Sea Clammers*, the plaintiffs sought relief that their complaint alleged to be "damages" pursuant to certain provisions of the FWPCA. The plaintiffs were commercial fishermen whose complaint, in addition to the traditional equitable remedies of injunction and declaratory judgment, prayed for \$250 million in compensatory and an additional \$250 million in punitive damages. The compensatory and punitive damages purportedly were warranted by the defendants' alleged conduct in dumping sewage into the Atlantic Ocean in violation of the act. The dumping, in turn, was alleged to have caused environmental changes which decimated the population of certain fish and shellfish off the New England coast, thereby drastically reducing plaintiffs' present and future livelihood. This Court found that the FWPCA--although it included a citizen suit provision--neither explicitly nor implicitly sanctioned an award of compensatory and punitive damages.

Sea Clammers is not the controlling precedent in this case for the simple reason that the *Sea Clammers* plaintiffs, unlike respondent, truly were seeking "damages"--a term this Court has defined to mean relief "intended to provide a victim with monetary compensation for an injury to his person, property, or reputation" and has distinguished from equitable actions for specific relief such as restitutionary awards of back pay. *Bowen v. Massachusetts*, 487 U.S. 879, 893 (1988). In contrast, respondent seeks no compensation for loss of income or diminution of its earning power and no punitive damage award to deter future unlawful conduct. It seeks instead only to recover monies paid in the course of discharging a legal duty owed by petitioners to remediate the property allegedly contaminated as a result of their negligence.

Cort v. Ash is also inapplicable to this case. In *Cort*, this Court fashioned a four-part test for the implication of a

private right of action pursuant to a statute that did not expressly provide for one. The four factors identified by *Cort* as necessary for the implication of a private right of action are: the plaintiff must be among the class of people for whose special benefit the statute was enacted; there must be explicit or implicit congressional intent to provide a private right of action under the statute; the underlying purpose and statutory scheme must militate in favor of the implication of such a right; and the cause of action must not be one traditionally relegated to state law. More recently, this Court has modified the *Cort* test by holding that its central focus must be the determination of legislative intent. *Touche Ross & Co. v. Redington*, 442 U.S. 560, 575-76, (1979).

Cort does not furnish any guidance in this case because RCRA -- far from being silent on the existence of a private right of action -- expressly provides for one in section 7002(a)(1)(B). The question being addressed in this case is not, as it was in *Cort*, the existence of a private right of action but rather the scope of the federal courts' jurisdiction to fashion an equitable remedy. As discussed above, this traditionally broad remedial jurisdiction in equity is presumed to exist and may not be curtailed absent an unambiguous indication of congressional intent to do so. Accordingly, petitioners' contention that *Cort* bars restitutionary relief under RCRA is without merit.

D. The Legislative History Of The Statute Is At Variance With The Statutory Text And Is Ambiguous. Therefore, The Legislative History Cannot Guide This Court's Determination On The Availability Of Restitution For Past Response Costs Under Section 7002(a)(1)(B).

Petitioners rely heavily on excerpts from RCRA's legislative history, which they contend demonstrate Congress' intent to limit the equitable remedies available under section 7002(a)(1)(B) to injunctive relief. The particular portions of the legislative history cited consist of a statement in the 1984 House Report to the effect that Section 7002 "confers on citizens a limited right . . . to sue to abate an imminent and substantial endangerment"³ and another statement in the same report identifying the goal of this section as "the prompt abatement of imminent and substantial endangerments."⁴

Petitioners also assert that a controversy over the permissibility of pendent state law claims that arose between minority House committee members and majority members sheds light on the scope of equitable remedies afforded by the statute. The Minority Report opposed giving district courts jurisdiction to hear pendent state claims in conjunction with RCRA claims under section 7002 on the grounds that any such grant of pendent jurisdiction would require "federal judges . . . to decide cumbersome questions of state law nuisance, trespass, and personal and property damage" and thereby, in the view of the minority members, interfere with those judges' ability to focus on the abatement of imminent

³ H.R. Rep. No. 198, 98th Cong., 2d Sess. (1984) reprinted in 1984 U.S.C.C.A.N. 5576, 5612.

⁴ *Id.*

hazards. The committee majority, while rejecting any limitation on pendent jurisdiction, stated in its Majority Report that the federal courts were to "exercise their discretion concerning pendent jurisdiction in a way that will not frustrate or delay the primary goal of this provision, namely the prompt abatement of imminent and substantial endangerments."⁵

The snippets of legislative history presented by petitioners in support of their interpretation of the statute are not only inconclusive on the scope of the district courts' jurisdiction to award restitutionary relief, they are not even illuminating on that point. To begin with, there are other portions of the legislative history not cited or analyzed by petitioners that afford strong support to the Ninth Circuit's construction of the statute. For example, the legislative history regarding the citizen suit provision explicitly states: "The Committee believes this expansion of the citizen suits provision will complement, rather than conflict with, the Administrator's efforts to eliminate threats to public health and the environment, particularly when the Government is unable to take action because of inadequate resources."⁶ The primary goal of Section 7002(a)(1)(B) was stated to be "the prompt abatement of imminent and substantial endangerments."⁷

Further, a 1979 House Committee Print, H. R. Committee Print No. 96-IFC 31, 96th Cong., 1st Sess. at 32 (1979) quoted in *United States v. Price*, *supra*, 688 F.2d at

⁵ 1984 U.S.C.C.A.N. at 53.

⁶ H.R. Rep. No. 198, 98th Cong., 2d Sess., pt. I and II, at 53 (May 17 & June 9, 1983), reprinted in 1984 U.S.C.C.A.N. 5576, 5612.

⁷ *Id.*

213, states that RCRA Section 6973, the provision that authorizes government actions to combat imminent and substantial endangerments, was intended to confer "overriding authority to respond to situations involving a substantial endangerment to health or the environment". This language can certainly be read to mean that that "overriding authority" embraces jurisdiction to award the full range of equitable relief. Thus, contrary to petitioners' assertions, the legislative history does not evidence clear congressional intent to limit the traditional equitable powers of federal courts to grants of injunctive relief.

Moreover, even if portions of legislative history relied upon by petitioners are *assumed* to evidence such clear congressional intent to preclude restitutionary relief, which they do not, *that intent is nowhere reflected in the language of the statute enacted by Congress*, and thus are wholly irrelevant to the Court's inquiry. See *City of Chicago v. Environmental Defense Fund*, ___ U.S. ___, 114 S. Ct. 1588, 1593 (1993) ("*But it is the statute and not the committee report which is the authoritative expression of the law. . . . Why should we, then, rely upon a single word in a committee report that did not result in legislation? Simply put, we shouldn't.*") (Emphasis supplied). See also, *Public Citizen v. United States Dept. of Justice*, 491 U.S. 440, 470-472 (1989) (Kennedy, J., concurring) ("[It] does not foster a democratic exegesis for this Court to rummage through unauthoritative materials to consult the spirit of the legislation in order to discover an alternative interpretation of the statute with which the Court is more comfortable.")

In short, the references in the legislative history excerpted by petitioners to citizen plaintiffs' "limited right" to bring suit for abatement -- viewed in light of the longstanding body of law developed by this Court protecting the federal judiciary's equitable jurisdiction -- can easily be read as

endorsing full equitable jurisdiction and foreclosing legal claims for *damages*.

By the same token, the exchanges between the majority and minority committee members concerning the availability of pendent jurisdiction are also easily susceptible to an interpretation supportive of the Ninth Circuit's construction of the statute. The limitations on pendent jurisdiction proposed by the minority members are not reflected in the enacted legislation and therefore may be considered to have been rejected by Congress altogether. Or, in one possible reading, they may show an intent to foreclose federal judicial involvement in the calculation of damages. On the other hand, a second and equally plausible interpretation of these words is that they indicate congressional intent to assure that pretrial hearings and trials are conducted so as to provide injunctive relief as quickly as possible--with remaining issues to be adjudicated after endangerments have been abated.

Thus, the legislative history -- contrary to petitioners' assertions -- is fraught with ambiguity and in fact may be construed to support the Ninth Circuit's opinion. Moreover, the excerpts from the legislative history relied upon by petitioners actually conflict with the plain meaning of the statutory text. The legislative history viewed as a whole in no way provides a clear indication that Congress, when it enacted Section 7002, understood and intended that this provision overcome the presumption that the federal courts should not exercise the broadest scope of equity jurisdiction, and could authorize only injunctive relief. Therefore, there is no reason that this Court should treat it as an authoritative guide to the meaning of that section.

II. RCRA SECTION 7002(A)(1)(B) DOES NOT CONDITION THE AVAILABILITY OF A CITIZEN SUIT ON THE EXISTENCE OF AN IMMINENT AND SUBSTANTIAL ENDANGERMENT AT THE TIME THAT THE LAWSUIT IS FILED

The United States agrees with respondent that Section 7002(a)(1)(B) permits federal district courts to grant restitutionary relief. See U.S. Amicus Br. at 22-28. The federal government nonetheless shares petitioners' view that even if restitutionary relief is generally available, Section 7002(a)(1)(B) creates no citizen suit cause of action if there is no imminent and substantial endangerment at the time the lawsuit is filed. Hence, according to both petitioners and the United States, a citizen plaintiff may obtain relief under Section 7002(a)(1)(B) if she makes *no effort* to clean up a site before seeking filing suit, or even if she makes a *partial effort*, so long as that effort falls short of that necessary to eliminate the ongoing hazards faced by the public and the natural environment. But, they contend, should the plaintiff citizen actually *eliminate* that hazard altogether prior to filing suit, she is *denied* all federal remedy.

Because Section 7002(a)(1)(B)'s statutory language does not unambiguously require such a perverse reading of congressional intent -- and we can imagine no other circumstance possibly appropriate for the Court acquiescing in such a construction of Section 7002(a)(1)(B) -- the Court should reject petitioners' and the federal government's proffered view. Even seasoned with seven herbs and spices, their argument is difficult to swallow. The Ninth Circuit's far more sensible reading of congressional intent, which would extend the Section 7002(a)(1)(B) cause of action to the most deserving of possible citizen plaintiffs, should be upheld.

A. Section 7002(a)(1)(B)'s Express Terms Reflect Congressional Intent To Extend The Citizen Suit Provision To Past Conduct And Their Effects Rather Than To Limit The Scope Of The Provision To Imminent And Substantial Endangerments Existing At The Time That A Lawsuit Is Filed

Neither petitioners nor the United States denies that Section 7002(a)(1)(B) applies retrospectively. Nor could they. Its retrospective dimension is explicit and repeated. Section 7002(a)(1)(B) allows lawsuits against any "*past or present* generator, *past or present* transporter, or *past or present* owner or operator of a treatment, storage, or disposal facility." Each of these past and present entities falls within Section 7002(a)(1)(B)'s ambit to the extent, moreover, that it "*has contributed*" or "*is contributing*" to the "*past and present* handling, storage, treatment, transportation, or disposal of any solid waste."⁸

⁸ The relevant portion of Section 7002(a)(1)(B) provides:

(a) * * * any person may commence a civil action on his own behalf --

(1) * * *

(B) against any person, including the United States * * * and including any past or present generator, past or present transporter, or past or present owner or operator of a treatment, storage, or disposal facility, who has contributed or who is contributing to the past or present handling, storage, treatment, transportation, or disposal of any solid or hazardous waste which may present an imminent and substantial endangerment to health or the environment.

Congress could hardly have been plainer in its resolve to ensure that Section 7002(a)(1)(B) would not be misconstrued as applying only prospectively. The repeated references to "past or present" make plain that Congress did not intend to confine Section 7002(a)(1)(B) to the present or to the future. Wholly past activities and their past consequences are within the explicit, indeed emphasized, scope of the citizen suit provision. Indeed, in *Gwaltney of Smithfield, Ltd. v. Chesapeake Bay Foundation, Inc.*, 484 U.S. 49, 57 n.2 (1987), a case much relied upon by Petitioners and the United States, this Court specifically cited Section 7002(a)(1)(B) as an example of a statutory provision in which "Congress has demonstrated . . . that it knows how to avoid this [limitation to prospective application] by using language that specifically targets wholly past violations." (emphasis added).

Contrary to the United States' claim, the statutory language does not "unambiguously indicate[]" that a citizen suit must be "in response to *specified activities* that 'may present an imminent and substantial endangerment to health or the environment.'" U.S. Amicus Br. 11 (emphasis added) (quoting 42 U.S.C. § 6972(a)(1)(B)). However, the references to "past and present" in the statute are not limited to activities. They apply to conditions as well. "Disposal" is defined to mean, *inter alia*, "leaking," (42 U.S.C. § 6903(3)), which does not require proof of any conduct, and describes as well "a physical state" or "an occurrence." See, e.g., *United States v. Waste Industries*, 734 F.2d 159, 164-65 (4th Cir. 1984). Nor are petitioners any more correct in opining that "the same present tense language allows suits only for *conditions* 'which may present an imminent and substantial endangerment.'" Pet. Br. 17 (emphasis added)

(quoting 42 U.S.C. § 6972(a)(1)(B) (emphasis omitted)).⁹

Petitioners and the United States rely for their claim that an imminent and substantial endangerment must nonetheless exist at the time that the lawsuit is filed on the fact that the reference to "imminent and substantial endangerment" in Section 7002(a)(1)(B) is preceded by the words "may present." See 42 U.S.C. § 6972(a)(1)(B) ("which may present an imminent and substantial endangerment to health or the environment."). They argue that because "may present" is written in the present (or possibly future) tense, no cause of action exists where any imminent and substantial endangerment that may have existed in the past no longer did at the time of the lawsuit's filing.

Petitioners' interpretation rests, however, on a fundamental transgression of one of the most basic principles of statutory construction. All here agree that "the starting point for interpreting a statute is the language of the statute itself." *Hallstrom v. Tillamook County*, 493 U.S. 20, 25 (1989); *Gwaltney of Smithfield, Ltd. v. Chesapeake Bay Foundation, Inc.*, 484 U.S. 49, 56 (1987). But what both petitioners and the United States then sidestep by their seizure of the words "may present" is this Court's repeated admonition that the construction of any statutory phrase cannot be validly undertaken in isolation. "Statutory construction 'is a holistic endeavor.'" *U.S. National Bank of Oregon v. Independent Insurance Agencies*, ___ U.S. ___, 113 S.Ct. 2173, 2182 (1993) (quoting *United Savings Ass'n of Texas v. Timbers of Inwood Forest Ass'n, Ltd.*, 484 U.S.

⁹ Petitioners also misquote Section 7002(a)(1)(B) on page 16 of their brief. That section refers to "any solid or hazardous waste *which* may present an imminent and substantial endangerment" and not to "any solid or hazardous waste *that* may present and imminent and substantial endangerment."

365, 371 (1988)). The Court must look to the "provisions of the whole law, and to its object and policy." *John Hancock Mutual v. Harris Trust & Savings Bank*, ___ U.S. ___, 114 S.Ct. 517, 523 (1993); *U.S. National Bank of Oregon v. Independent Insurance Agencies*, ___ U.S. ___, 113 S.Ct. at 2182; *Conroy v. Aniskoff*, ___ U.S. ___, 113 S.Ct. 1562, 1565 (1993); *King v. St. Vincent's Hosp.*, 502 U.S. 215, 112 S.Ct. 570, 574 (1991); *Crandon v. United States*, 494 U.S. 152, 158 (1990); *Massachusetts v. Morash*, 490 U.S. 107, 115 (1990)).

The statutory phrase "which may present an imminent and substantial endangerment" does not unambiguously modify either certain "specified activities" or "conditions." Indeed, neither of those terms even appears in Section 7002(a)(1)(B). A more natural reading of the relevant statutory language is instead that the purpose of that "relative defining clause" is to "identif[y] the person or thing meant by limiting the denotation of the antecedent." Henry W. Fowler, *Dictionary of Modern English Usage*, 626 (2d ed. 1965). Here, the immediate antecedent is "any solid or hazardous waste."

Section 7002 is intended to apply only to narrow categories of "solid or hazardous waste" which have the potential of causing an imminent and substantial endangerment to health or the environment. The best reading of the meaning of the "may present" modifier, therefore, is to define this category of "solid or hazardous waste." The language, consistently with the section's overall emphasis on past or present activities, does not purport to describe when such an endangerment must have been or might in the future be, present. Only by conveniently ignoring the actual language immediately preceding the clause they purport to assign a plain meaning are petitioners and the United States able to support their opposing view.

The correctness of our view is reinforced by a subsequent clause in Section 7002(a). In describing the scope of judicial relief available under Section 7002(a)(1)(B), Section 7002(a) provides that the district court shall have jurisdiction "to restrain any person who has contributed or who is contributing to the past or present handling, storage, treatment, transportation, or disposal of any solid or hazardous waste referred to in paragraph (1)(B)." 42 U.S.C. 6972(a). Here the statute quite plainly links the meaning of "solid or hazardous waste" for the purposes of Section 7002(a)(1)(B) to the earlier reference to those types of wastes that "may present an imminent and substantial endangerment." It is not the activities that must present the endangerment at some particular time. The activities may, as in the prior portion of the law, occur in the "past or present."¹⁰

Finally, there is no merit in petitioners' suggestion that Section 7002's notice provision demonstrates congressional intent to confine Section 7002(a)(1)(B) to endangerments existing at the time of the filing of the lawsuit. That notice provision, found at Section 7002(b)(2)(A), requires that, prior to the filing of a citizen suit, the plaintiff provide ninety

¹⁰ Congress similarly drafted the Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA), 42 U.S.C. §§ 9601 *et seq.* Section 104 of CERCLA authorizes the President to undertake cleanup activities whenever there is a release or substantial threat of release into the environment of either a "hazardous substance" (42 U.S.C. § 9604(a)(1)(A)) or a "pollutant or contaminant which may present an imminent or substantial endangerment to the public health or welfare" (42 U.S.C. § 9604(a)(1)(B)). Here, too, the imminent and substantial endangerment clause, including "may present," serves only to define a type of pollutant or contaminant rather than to dictate when certain hazards must be present.

days' notice to the EPA Administrator, the state in which the endangerment occurred, and "any person alleged to have contributed or to be contributing to the past or present handling, storage, treatment, transportation, or disposal of any solid or hazardous waste referred to in subsection (a)(1)(B)". Petitioners contend that permitting a post-clean-up action strips the notice provision of its chief functions which are: to permit the alleged violator the opportunity to address the problem and to allow government agencies the opportunity to take the lead in enforcing environmental regulations. Pet. Br. 18-21.

Although the primary purpose of the notice provision may be to allow potential defendants to undertake clean-up on their own -- or, failing that, through a government-compelled administrative proceeding -- that does not suggest that Section 7002(a)(1)(B)'s exclusive scope is present endangerments. The notice provision serves a valuable function even where, as in this case, plaintiff has eliminated the hazard. As the Ninth Circuit noted in its opinion below (Pet. App. A8), a post-abatement case such as this one serves the valuable function of notifying EPA and the state that contamination occurred and was cured. This type of information is necessary for the EPA in particular to fulfill its statutory obligations under RCRA of inventorying contaminated sites whose existence is reported to EPA by the states (42 U.S.C. § 6933) and coordinating, collecting and disseminating information about, *inter alia*, the location of sites containing solid and hazardous waste (42 U.S.C. § 6983). In addition, notice prior to the filing of a RCRA restitution action promotes the possibility of settlement prior to the filing of a lawsuit.

B. RCRA's Stated National Policy "To Minimize The Present And Future Threat To Human Health And The Environment" Is Served By Permitting Citizens To Reduce And Eliminate Imminent and Substantial Endangerments Prior To The Filing Of A Lawsuit

Congress declared in RCRA a "national policy of the United States" that hazardous waste "should be treated, stored, or disposed of *so as to minimize the present and future threat to human health and environment.*" 42 U.S.C. § 6902(b) (emphasis added). That policy provides an overarching principle relevant to the construction of any terms enacted by Congress within that statutory context, including Section 7002(a)(1)(B). There is no room within that principle for the unduly narrow reading of Section 7002(a)(1)(B) proffered by both petitioners and the United States.

Hazardous waste sites presenting imminent and substantial endangerments are not static in character. The hazards they present to human health and the environment increase inexorably and dramatically over time as do the costs of their remediation. The hazardous constituents within such wastes, when released, can spread in an uncontrolled manner throughout an ecosystem. In addition, the longer the waste remained uncontrolled, the greater the likelihood of accidental exposures. For these reasons, minimization of the threats posed by hazardous wastes tends to favor early, rather than delayed cleanup. Delay means greater risks of exposure and greater cleanup costs.

Petitioners' proposed construction of Section 7002(a)(1)(B), however, would promote just such delay. Indeed, their reading would create a perverse incentive against a citizen plaintiff's ever undertaking any cleanup on

his or her own initiative. The citizen plaintiff who sought to promote RCRA's stated policy "to minimize the present and future threat to human health and environment" by reducing and eliminating the imminent and substantial endangerment would be denied any relief under petitioners' view. Only the plaintiff who delayed any cleanup efforts, and thereby risked exacerbating the existing hazards, would be able to bring a claim for relief under Section 7002(a)(1)(B).

This Court should require the clearest indicia of congressional intent prior to supposing that Congress intended such an untenable result. The statutory language, however, certainly does not compel such a reading. And RCRA's stated "national policy" flatly contradicts it.¹¹

¹¹ Petitioners mistakenly rely on this Court's decision in *Gwaltney of Smithfield v. Chesapeake Bay Foundation, Ltd.*, 484 U.S. 49 (1987). To be sure, this Court in *Gwaltney* held that an environmental citizen suit provision did not apply to past violations. But this Court was not construing Section 7002(a)(1)(B) of RCRA. The Court was construing an entirely different statutory provision in an entirely different environmental law: Section 505 of the Clean Water Act, 33 U.S.C. 1365 ("CWA"). Section 7002(a)(1)(B) is, moreover, entirely unique. It has no counterpart in the CWA. And the CWA does not even contain remotely similar language. The CWA's citizen suit provision does not expressly apply to "past or present" conduct, but requires instead that a facility be "in violation" of a distinct statutory or regulatory requirement of the Act. By contrast, Section 7002(a)(1)(B) does not include such "in violation" language; nor does it even require a plaintiff to prove any violation whatever of a distinct statutory or regulatory requirement. Its purpose and scope are entirely different. Any comparison, therefore, between the scope of the CWA's citizen suit provision and that contained in RCRA Section 7002(a)(1)(B) is wholly inapt.

C. The Relevant Legislative History Does Not Support Petitioners' Crabbed Reading Of Section 7002(a)(1)(B)

This Court has long debated the clarity of statutory language necessary for the Court to uphold a reading of congressional intent that the Court might otherwise believe expresses unwise, illogical, or even somewhat absurd policies. *See, e.g., Public Citizen v. Department of Justice*, 491 U.S. 440, 454 (1989); *Green v. Bock Laundry Machine*, 490 U.S. 504, 510 (1989); *Church of Holy Trinity v. United States*, 143 U.S. 457, 459 (1892). Here, however, petitioners find their primary support for such an absurd reading not in statutory language, but in snippets of legislative history. On no occasion has this Court ever suggested that legislative history is enough to sustain what the statute's expressly stated policies would otherwise indicate is an untenable and perverse reading of congressional intent. Yet, that is precisely what petitioners attempt to do in this case.

Even assuming, however, that legislative history could theoretically muster the necessary support, petitioners fail to do so here. None of the legislative history excerpts upon which they rely (Pet. Br. 30-32) even purport to address the issue presented in this case, *i.e.*, whether an imminent and substantial endangerment must exist at the time that the suit is filed. Petitioners can at most point to isolated statements that seem to assume, without addressing the issue, that an imminent and substantial endangerment exists at the time the lawsuit is filed.

Petitioners' evidence of legislative history is therefore a far cry from compelling evidence of congressional intent that such an endangerment must continue to exist when the lawsuit is filed. It is just as likely that the lawmakers in

making these statements were merely contemplating the normal circumstance rather than dictating the *exclusive* circumstance when such a lawsuit would be required. In none of these various excerpts is there a blanket statement that the imminent and substantial endangerment must continue to exist at the time of the lawsuit.

An entirely plausible alternative reading of congressional intent, consistent with the legislative history, would be that the defendant's contribution to the risk of such an endangerment establishes liability under Section 7002(a)(1)(B), but once that liability is established, it is not eliminated by the plaintiff's own subsequent efforts to eliminate the hazard. Those efforts simply, as in this case, shift the nature of the equitable remedy "necessary" under Section 7002(A)(1)(B), rather than eliminate the cause of action altogether.

D. The Comprehensive Environmental Response, Compensation, And Liability Act, Does Not Require Limiting Section 7002(a)(1)(B) To Endangerments Existing At The Time Of The Lawsuit's Filing

Likewise lacking merit is petitioners' claim that the Court should reject the most natural reading of Section 7002(a)(1)(B) because that reading would interfere with the carefully structured scheme for private cost recovery actions Congress created in CERCLA. The short answer is that Congress deliberately decided to have CERCLA enforcement authorities and private citizen's enforcement authority under Section 7002 (and the government's closely related enforcement authority under Section 7003) *supplement* each other rather than *substitute* for each other. Congress could easily have eliminated Section 7003 when it enacted CERCLA in 1980, and not created Section 7002(a)(1)(B)

four years later in 1984. Congress instead decided that the remedial purposes of those two laws would best be served by allowing those two statutory causes of action to co-exist notwithstanding any possible coordination issues inevitably created.

Section 302 of CERCLA states in no uncertain terms that "[n]othing in this chapter shall affect or modify in any way the obligations or liabilities of any person under other Federal or State law * * * with respect to releases of hazardous substances or other pollutants or contaminants." 42 U.S.C. § 9652. CERCLA's plain language, therefore, leaves absolutely no room for petitioners' contention that CERCLA provides a basis for narrowly reading petitioners' "obligations or liabilities * * * under [RCRA] * * * with respect to releases of hazardous substances or other pollutants or contaminants."

Petitioners also greatly exaggerate the potential for interference between RCRA and CERCLA. The fact that there is no express statute of limitations in RCRA is of no moment either in determining whether Congress intended in RCRA to provide a restitutionary remedy for clean-up costs already expended or in applying the citizen suit provisions. As the court of appeals below reasoned, the equitable defense of laches is available to defendants in Section 7002(a)(1)(B) when they choose to raise it. This Court long ago held in *Holmburg v. Albrecht*, 327 U.S. 392, 395 (1946) that it was appropriate to allow laches to be raised as a defense in any case involving a "federally created right for which the sole remedy is in equity." *Holmburg* further explains that "laches is not, like limitation, a mere matter of time; but principally a question of the inequity of permitting the claim to be enforced, -- an inequity founded upon some change in the condition or relations of the property or parties." 327 U.S. at 396 (citations omitted).

Accordingly, the laches defense would operate to protect defendants whose situation had materially changed in some way since their original involvement in contributing to the actions which presented the endangerment. Thus, to use the usual formulation, the defense of laches could be asserted if a defendant deemed herself prejudiced by the plaintiff's delay in bringing the action. In addition, case law exists that allows suits for environmental clean-up and applies federal statutes of limitations for quasi-contractual causes of action.¹²

Similarly, the absence in RCRA of the equivalent of the 29 pages of standards found in the Code of Federal Regulations governing the reimbursement of response costs under CERCLA neither evinces conclusive congressional intent to deny restitution of cleanup costs under RCRA nor makes it impossibly difficult for courts to fashion a restitutionary remedy under RCRA. Congress deliberately chose to allow for potentially overlapping remedies and the courts can avoid any undue interference through the exercise of their equitable discretion in the context of Section 7002(a)(1)(B) litigation.

In relying on general equitable principles to determine the appropriate amount of a restitutionary award under Section 7002(a)(1)(B), a district court could reasonably consult

¹² It should also be noted that environmental statutes other than RCRA lack statutes of limitation. Nevertheless, the federal courts have not allowed Congress' failure to specify limitations periods from enforcing claims for equitable restitution under those statutes. See, e.g., *United States v. P/B STCO* 213, *supra*, 756 F.2d 364 in which the Fifth Circuit applied 28 U.S.C. § 2415(a), which governs actions by the United States on contracts implied in fact or law to an action under the Clean Water Act for recovery of costs expended to remediate oil pollution in navigable waters.

relevant CERCLA guidance documents. The courts would also have the benefit of expert testimony on the appropriateness of particular expenditures, just as they do during CERCLA proceedings. Finally, courts have shown themselves completely capable of deciding which expenses are reimbursable in environmental costs recovery actions even absent the availability of such detailed standards.¹³

With respect to petitioners' claim that a restitutionary remedy under Section 7002(a)(1)(B) would undermine CERCLA's so-called "petroleum exclusion," their alarm is misguided. It is certainly correct that CERCLA Section 101(14) contains a limited exclusion for many petroleum products,¹⁴ and that RCRA, by contrast, includes no comparable exclusion for hazardous petroleum wastes. However, petitioners cannot seriously dispute that petroleum can be, and is, regulated under RCRA either as a "solid" or as a "hazardous" waste. For example, used petroleum products and petroleum-contaminated media may be characterized as hazardous wastes under EPA's Toxicity Characteristic Rule and their clean-up ordered.¹⁵ See, e.g.,

¹³ See *United States v. P/B STCO 13*, *supra*, 756 F.2d 364.

¹⁴ CERCLA's petroleum exclusion is not, however, absolute. Petroleum products which contain substances other than their indigenous components and common additives (in excess of their normal occurrence in petroleum) are not excluded from the reach of CERCLA. See, e.g., *Mid Valley Bank v. North Valley Bank*, 764 F. Supp. 1377, 1384 (E.D. Cal. 1991) and *United States v. Alcan Aluminum Corp.*, 775 F. Supp. 531, 539 (C.D. Cal. 1991).

¹⁵ 55 Fed. Reg. 11798. Application of the Toxicity Characteristic Rule is currently temporarily deferred by EPA with respect to media and debris contaminated with petroleum from underground storage tanks which are subject to the corrective action requirements of Subtitle I of RCRA. 40 C.F.R. § 261.4

Zands v. Nelson, 779 F. Supp. 1254, 1261-62 (S.D. Cal. 1991) (Petroleum waste is covered by RCRA). Likewise, petitioners can point to no authority, legislative or otherwise, that CERCLA's petroleum exclusion was intended to bar all federal claims arising from petroleum contamination, not merely those under CERCLA. And no anomalies flow from that purported discrepancy. Quite the opposite is true. The absence of overlap is likely a reason why Congress decided to permit both causes of action to persist, notwithstanding their potential to overlap in other areas.

In all events, the possibility of RCRA Section 7002(a)(1)(B) allowing a citizen suit regarding a waste not covered by CERCLA has no bearing on the issue currently before the Court. The same would be true for a suit for purely injunctive relief brought by a citizen plaintiff pursuant to Section 7002(a)(1)(B) or a suit by the government for identical relief pursuant to RCRA Section 7003. And the lower courts have uniformly upheld the propriety of RCRA enforcement actions in those circumstances. See, e.g., *Agricultural Excess & Supplies Inc. v. ABD Tank & Pump Co.*, 878 F. Supp. 1091, 1095 (N.D. Ill. 1995); *Paper Recycling Co. v. Amoco Oil Co.*, 856 F. Supp. 671, 675 (N.D. Ga. 1993); *Zands v. Nelson*, 779 F. Supp. 1254, 1261-62 (S.D. Cal. 1991). CERCLA's petroleum exclusion eliminates the possibility of a suit for injunctive relief under CERCLA Section 106, 42 U.S.C. § 9606, yet such suits are permissible under RCRA Sections 7002 and 7003 because RCRA contains no such exclusion. Hence, petitioners' claim that CERCLA's petroleum exclusion requires a narrow reading of RCRA Section 7002 is a complete red herring.

E. The United States Is Not Entitled To Any Judicial Deference Regarding The Meaning Of Section 7002(a)(1)(B)

The United States never claims that its view regarding the meaning of Section 7002(a)(1)(B) is entitled to any judicial deference. And rightly so. This Court has made clear that the principle of judicial deference to agency interpretations of statutory language does not apply "to agency litigating positions that are wholly unsupported by regulations, rulings, or administrative practice." *See Bowen v. Georgetown University Hospital*, 488 U.S. 204, 212 (1988). And that is all that is before the Court: a litigating position.

Indeed, the United States amicus brief filed in this case is not even a distant relative of the kind of considered exercise of legislatively delegated lawmaking authority at issue in *Chevron, U.S.A., Inc. v. Natural Resources Defense Council, Inc.*, 467 U.S. 837 (1984). The government's view is not reflected in any agency legislative rule promulgated with the opportunity for notice and comment pursuant to the Administrative Procedure Act. The United States is not even representing before this Court the views of the Environmental Protection Agency, which is the agency charged with administering RCRA. It is instead a "Brief for the United States," which, by the government's own acknowledgement, represents the views of those federal agencies likely to be *defendants* in citizen suit actions brought pursuant to Section 7002(a)(1)(B). *See* U.S. Amicus Br. 2 ("The United States also has an interest in Section 7002(a)(1)(B) as a potential defendant in a citizen suit. Section 7002(a)(1)(b) expressly provides that 'the United States and any other governmental instrumentality or agency'

may be named as a defendant in a citizen action." ¹⁶ The primary impetus for the government's brief -- and its conclusion that Section 7002(a)(1)(B) does not apply in the absence of an imminent and substantial endangerment at the time of the lawsuit's filing -- is a desire to minimize its own liability. The government has allowed, in effect, its liability concerns to overcome its enforcement interests.

CONCLUSION

The judgment of the court of appeals should be affirmed.

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¹⁶ The United States has, moreover, good reason to be concerned about its potential exposure under Section 7002(a)(1)(B). The federal government is the single greatest source of hazardous waste contamination in the country. *See* Congressional Budget Office, *Federal Liabilities under Hazardous Waste Laws*, S. Doc. No. 95, 101st Cong., 2d Sess. (1990).

APPENDIX

§ 6972. Citizen suits

(a) In general

Except as provided in subsection (b) or (c) of this section, any person may commence a civil action on his own behalf-

(1)(A) against any person (including (a) the United States, and (b) any other governmental instrumentality or agency, to the extent permitted by the eleventh amendment to the Constitution) who is alleged to be in violation of any permit, standard, regulation, condition, requirement, prohibition, or order which has become effective pursuant to this chapter; or

(B) against any person, including the United States and any other governmental instrumentality or agency, to the extent permitted by the eleventh amendment to the Constitution, and including any past or present generator, past or present transporter, or past or present owner or operator of a treatment, storage, or disposal facility, who has contributed or who is contributing to the past or present handling, storage, treatment, transportation, or disposal of any solid or hazardous waste which may present an imminent and substantial endangerment to health or the environment; or

(2) against the Administrator where there is alleged a failure of the Administrator to perform any act or duty under this chapter which is not discretionary with the Administrator.

Any action under paragraph (a)(1) of this subsection shall be brought in the district court for the district in which the alleged violation occurred or the alleged endangerment may

occur. Any action brought under paragraph (a)(2) of this subsection may be brought in the district court for the district in which the alleged violation occurred or in the District Court of the District of Columbia. The district court shall have jurisdiction, without regard to the amount in controversy or the citizenship of the parties, to enforce the permit, standard, regulation, condition, requirement, prohibition, or order, referred to in paragraph (1)(A), to restrain any person who has contributed or who is contributing to the past or present handling, storage, treatment, transportation, or disposal of any solid or hazardous waste referred to in paragraph (1)(B), to order such person to take such other action as may be necessary, or both, or to order the Administrator to perform the act or duty referred to in paragraph (2), as the case may be, and to apply any appropriate civil penalties under section 6928(a) and (g) of this title.

(b) Actions prohibited

(1) No action may be commenced under subsection (a)(1)(A) of this section-

(A) prior to 60 days after the plaintiff has given notice of the violation to-

(i) the Administrator;

(ii) the State in which the alleged violation occurs; and

(iii) to any alleged violator of such permit, standard, regulation, condition, requirement, prohibition, or order,

except that such action may be brought immediately after such notification in the case of an action under this section respecting a violation of subchapter III of this chapter; or

(B) if the Administrator or State has commenced and is diligently prosecuting a civil or criminal action in a court of the United States or a State to require compliance with such permit, standard, regulation, condition, requirement, prohibition, or order.

In any action under subsection (a)(1)(A) of this section in a court of the United States, any person may intervene as a matter of right.

(2)(A) No action may be commenced under subsection (a)(1)(B) of this section prior to ninety days after the plaintiff has given notice of the endangerment to-

(i) the Administrator;

(ii) the State in which the alleged endangerment may occur;

(iii) any person alleged to have contributed or to be contributing to the past or present handling, storage, treatment, transportation, or disposal of any solid or hazardous waste referred to in subsection (a)(1)(B) of this section,

except that such action may be brought immediately after such notification in the case of an action under this section respecting a violation of subchapter III of this chapter.

(B) No action may be commenced under subsection (a)(1)(B) of this section if the Administrator, in order to restrain or abate acts or conditions which may have contributed or are contributing to the activities which may present the alleged endangerment -

(i) has commenced and is diligently prosecuting an

action under section 6973 of this title or under section 106 of the Comprehensive Environmental Response, Compensation and Liability Act of 1980 [42 U.S.C.A. § 9606],¹

(ii) is actually engaging in a removal action under section 104 of the Comprehensive Environmental Response, Compensation and Liability Act of 1980 [42 U.S.C.A. § 9604];

(iii) has incurred costs to initiate a Remedial Investigation and Feasibility Study under section 104 of the Comprehensive Environmental Response, Compensation and Liability Act of 1980 [42 U.S.C.A. § 9604] and is diligently proceeding, with a remedial action under that Act [42 U.S.C.A. § 9601 et seq.]; or

(iv) has obtained a court order including a consent decree) or issued an administrative order under section 106 of the Comprehensive Environmental Response, Compensation and Liability Act of 1980² [42 U.S.C.A. § 9606] or section 6973 of this title pursuant to which a responsible party is diligently conducting a removal action, Remedial Investigation and Feasibility Study (RIFS), or proceeding with a remedial action.

In the case of an administrative order referred to in clause (iv), actions under subsection (a)(1)(B) of this section are prohibited only as to the scope and duration of the administrative order referred to in clause (iv).

(C) No action may be commenced under subsection (a)(1)(B) of this section if the State, in order to restrain or abate acts or conditions which may have contributed or are contributing to the activities which may present the alleged endangerment-

(i) has commenced and is diligently prosecuting an action under subsection (a)(1)(B) of this section;

(ii) is actually engaging in a removal action under section 104 of the Comprehensive Environmental Response, Compensation and Liability Act of 1980 [42 U.S.C.A. § 9604]; or

(iii) has incurred costs to initiate a Remedial Investigation and Feasibility Study under section 104 of the Comprehensive Environmental Response, Compensation and Liability Act of 1980 [42 U.S.C.A. § 9604] and is diligently proceeding with a remedial action under that Act [42 U.S.C.A. § 9601 et seq.]

(D) No action may be commenced under subsection (a)(1)(B) of this section by any person (other than a State or local government) with respect to the siting of a hazardous waste treatment, storage, or a disposal facility, nor to restrain or enjoin the issuance of a permit for such facility.

(E) In any action under subsection (a)(1)(B) of this section in a court of the United States, any person may intervene as a matter of right when the applicant claims an interest relating to the subject of the action and he is so situated that the disposition of the action may, as a practical matter, impair or impede his ability to protect that interest, unless the Administrator or the State shows that the applicant's interest is adequately represented by existing parties.

(F) Whenever any action is brought under subsection (a)(1)(B) of this section in a court of the United States, the plaintiff shall serve a copy of the complaint on the Attorney General of the United States and with the Administrator.

(c) Notice

No action may be commenced under paragraph (a)(2) of this section prior to sixty days after the plaintiff has given notice to the Administrator that he will commence such action, except that such action may be brought immediately after such notification in the case of an action under this section respecting a violation of subchapter III of this chapter. Notice under this subsection shall be given in such manner as the Administrator shall prescribe by regulation. Any action respecting a violation under this chapter may be brought under this section only in the judicial district in which such alleged violation occurs.

(d) Intervention

In any action under this section the Administrator, if not a party, may intervene as a matter of right.

(e) Costs

The court, in issuing any final order in any action brought pursuant to this section or section 6976 of this title, may award costs of litigation (including, reasonable attorney and expert witness fees) to the prevailing or substantially prevailing party, whenever the court determines such an award is appropriate. The court may, if a temporary restraining order or preliminary injunction is sought, require the filing of a bond or equivalent security in accordance with the Federal Rules of Civil Procedure.

(f) Other rights preserved

Nothing in this section shall restrict any right which any person (or class of persons) may have under any statute or common law to seek enforcement of any standard or

requirement relating to the management of solid waste or hazardous waste, or to seek any other relief (including relief against the Administrator or a State agency).

Transporters

A transporter shall not be deemed to have contributed or to be contributing to the handling, storage, treatment, or disposal, referred to in subsection (a)(1)(B) of this section taking place after such solid waste or hazardous waste has left the possession or control of such transporter, if the transportation of such waste was under a sole contractual arrangement arising from a published tariff and acceptance for carriage by common carrier by rail and such transporter has exercised due care in the past or present handling, storage, treatment, transportation and disposal of such waste.

(Pub.L. 89-272, Title II, § 7002, as added Pub.L. 94-580, § 2, Oct. 21, 1976, 90 Stat. 2825, and amended Pub.L. 95-609, § 7(p), Nov. 8, 1978, 92 Stat. 3083; Pub.L. 98-616, Title IV, § 401, Nov. 8, 1984, 98 Stat. 3268.)

1. So in original. The comma Probably should be a semicolon.
2. So in original. Probably should be "1980".